

		the plaintiff will prevail based on the weight of the evidence. Defendant has also failed to provide any argument or authority as to how, on these facts, plaintiff's claim fails as a matter of law. (See Mtn. Memo. P&As, in passim.) Defendant's request for judicial notice is GRANTED. (See Evid. Code, § 452, subds. (d), (h).) Trial is set for September 21, 2026 at 9:30 a.m. in Department C28. The parties are ordered to comply with the court's standing order and Local Rule 317. Should plaintiff desire a trial by jury, plaintiff is ordered to post jury fees on or before August 21, 2026. Failure to post jury fees could result in a waiver of the right to a jury trial. Defendant shall give notice of this ruling.
52.	Matthew R. Silver and Civica Law Group APC v. Curtis R. Wright 2025-01478015	Petitioners Matthew R. Silver and Civica Law Group APC's motion to appoint receiver is DENIED WITHOUT PREJUDICE. (Code Civ. Proc., § 564 [authorizing receivership].) While moving petitioners request a receivership to enforce an injunction which does not appear mandatory on its face, the practical effect of the requested relief, allowing appointment of a receiver with broad powers over respondents' business, is barred by the appellate stay. (Code Civ. Proc., § 916, subd. (a) ["the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby"]; <i>Daly v. San Bernardino County Bd. of Supervisors</i> (2021) 11 Cal.5th 1030, 1040-1041 [appellate stays re: mandatory vs. prohibitory injunctions]; <i>Varian Medical Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 189-190 ["In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results ... A trial court proceeding ... affects the effectiveness of an appeal if the possible outcomes on appeal and the actual or possible results of the proceeding are irreconcilable ... [or] if the very purpose of the appeal is to avoid the need for that proceeding".]) As the motion is denied due to the appellate stay and the court does not reach the merits at this time, moving party's request for judicial notice is also DENIED WITHOUT PREJUDICE. (<i>Soukup v. Law Offices of Herbert Hafif</i> (2006) 39 Cal.4th 260, 295 [court is not required to take judicial notice of irrelevant documents].) Petitioners shall give notice of this ruling.

53.	Singh v. Parkside Property Owners Association 2026-01539180	Petitioner Kulwinder Singh's motion for reconsideration of the court's March 13, 2026 order denying a preliminary injunction is DENIED. Petitioner brings this motion under C.C.P. § 1008 which governs motions for reconsideration and requires that such motions be based on "new or different facts, circumstances, or law." A motion for reconsideration must be supported by proper declarations establishing these new facts or changed circumstances. Petitioner in substance argues that he has satisfied § 1008 because a technical issue caused the omission of the declaration of Oleksandr Mykhailonok at the time of the March 13, 2026 hearing. Petitioner claims the omission was prejudicial to the outcome of the motion. However, at the hearing of March 13, 2026 the court stated that the missing declaration would not have aided petitioner, as (as summarized) it was hearsay. The premise of plaintiff's argument is that Fei was removed (as opposed to resigning) from defendant's board. However, plaintiff has not submitted persuasive evidence in support of this point. Plaintiff referenced a declaration that is not in the court's file. But even accepting plaintiff's summary of the declaration, it would be hearsay. March 13, 2026 Minute Order, ROA 55, (emphasis added.) Hearsay statements are not evidence. Having looked at the two declarations of Oleksandr Mykhailonok submitted with the current motion, the court concludes the same: these are hearsay—out of court statements of Fei being offered for the truth of the matter asserted (that Fei was forced to resign). In short, the evidence submitted by petitioner is not new. But even considering the declarations, it does not change the court's analysis, and therefore does not change the outcome of the request for a preliminary injunction. See <i>Yuzon v. Collins</i>, (2004) 116 Cal.App.4th 149 (the trial court denied a motion for reconsideration, finding that the declaration "failed to constitute new evidence warranting reconsideration, and even if the declaration constituted new evidence, it failed to provide a basis to change the court's ruling."). See also <i>Wiz Technology, Inc. v. Coopers & Lybrand</i>, (2003) 106 Cal.App.4th 1, 17 ("Wiz failed to meet its burden under Code
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